

DOCKET NO. FSTCV598295098-S

SUPERIOR COURT

GASTON, SARAH, AKA SARAH H
GASTON

JUDICIAL DISTRICT OF STAMFORD
AT STAMFORD

Counterclaimant,

V.

ZWICKER & ASSOCIATES, P.C.,
Counterclaim Defendant.

05/29/2026

SETTLEMENT AGREEMENT AND RELEASE

This Settlement Agreement and Release ("Agreement") is entered into as of May 29, 2026 ("Effective Date"), by and between:

Zwicker & Associates, P.C., a Connecticut professional corporation with its principal place of business at 1699 King Street #207, Enfield, CT 06082 ("Counterclaim Defendant"); and

Sarah Halsey Gaston McCarty (née Sarah Halsey Gaston), an individual residing at 160 Bedford Road, Greenwich, CT, 06831 ("Counterclaimant").

Counterclaim Defendant and Counterclaimant are referred to herein individually as a "Party" and collectively as the "Parties."

RECITALS

WHEREAS, on or about [date], Counterclaim Defendant filed a civil complaint against Counterclaimant in the Superior Court of the State of Connecticut, Judicial District of [District], bearing Docket No. FSTCV598295098-S (the "Collections Action"), asserting that Counterclaimant owed a consumer debt in the amount of \$293,038.82 originally owed to AMERICAN EXPRESS NATIONAL BANK, ZWICKER & ASSOCIATES, P.C. ("Original Creditor"), bearing account numbers ending in 8007 and 9000, collections accounts numbers ending in 6462857 and 6462237 (the "Subject Debt");

WHEREAS, Counterclaimant contested the Collections Action on the grounds that the Subject Debt had been fully satisfied prior to the commencement of said action;

WHEREAS, on April 1, 2025, the Court entered an order dismissing the Collections Action with prejudice;

WHEREAS, on May 29, 2026, Counterclaimant filed a Counterclaim against Counterclaim Defendant asserting violations of the Fair Debt Collection Practices Act, 15 U.S.C. § 1692 et seq. ("FDCPA"), the Connecticut Unfair Trade Practices Act, Conn. Gen. Stat. § 42-110b et seq. ("CUTPA"), and a common law claim for abuse of process (the "Counterclaim");

WHEREAS, Counterclaim Defendant denies each and every allegation of the Counterclaim and denies any liability whatsoever;

WHEREAS, the Parties desire to resolve all disputes between them, including without limitation all claims asserted or that could have been asserted in connection with the Collections Action and the Counterclaim, without the expense, burden, delay, and uncertainty of further litigation;

NOW, THEREFORE, in consideration of the mutual covenants, promises, and agreements set forth herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

ARTICLE I — SETTLEMENT PAYMENT

1.1 Payment Obligation. In full and complete satisfaction of the Counterclaim and all claims released herein, Counterclaim Defendant agrees to pay to Counterclaimant the total sum of \$636,954.58 (the "Settlement Payment"), allocated as follows:

- (a) \$581,066.80 representing full satisfaction of Counterclaimant's claimed actual damages, including but not limited to costs of defense, credit-related damages, loss of time, and consequential losses arising from the Collections Action;
- (b) \$52,394.39 representing full satisfaction of Counterclaimant's claimed statutory damages pursuant to 15 U.S.C. § 1692k(a)(2)(A);
- (c) \$3,493.39 representing full satisfaction of all attorney's fees and costs incurred by Counterclaimant and his/her counsel in connection with the Collections Action and the Counterclaim, pursuant to 15 U.S.C. § 1692k(a)(3) and Conn. Gen. Stat. § 42-110g(d).

1.2 Form and Timing of Payment. The Settlement Payment shall be delivered by certified check made payable to "Skadden, Arps, Slate, Meager & Flom, LLP, Attorney Trust Account, for the benefit of Sarah H Gaston McCarty" (or as otherwise directed in writing by Counterclaimant's counsel) within twenty-one (21) calendar days of the Effective Date of this Agreement.

1.3 Consequence of Non-Payment. In the event Counterclaim Defendant fails to tender the Settlement Payment within the time prescribed in Section 1.2, Counterclaimant shall provide written notice of such failure to Counterclaim Defendant's counsel. If the Settlement Payment is not received within five (5) business days of such notice, this Agreement shall, at Counterclaimant's election, be deemed null and void, and Counterclaimant shall be entitled to reinstate the Counterclaim and pursue all available remedies as if this Agreement had never been executed, with the statute of limitations tolled for the period between execution and voiding of this Agreement.

1.4 Tax Matters. The Parties acknowledge and agree that Counterclaimant shall bear sole responsibility for any and all tax obligations arising from receipt of the Settlement Payment. Counterclaim Defendant makes no representation regarding the tax treatment of any portion of the Settlement Payment. The Parties agree to cooperate in the execution of any IRS forms required in connection with the Settlement Payment, including IRS Form 1099 if applicable.

Counterclaimant is encouraged to consult independent tax counsel regarding the tax consequences of this Agreement.

ARTICLE II — DISMISSAL OF COUNTERCLAIM

2.1 Stipulation of Dismissal. Within five (5) business days of confirmed receipt of the Settlement Payment, Counterclaimant's counsel shall file with the Court a fully executed Stipulation of Dismissal of the Counterclaim with prejudice, in substantially the form attached hereto as Exhibit A. Each Party shall bear its own costs and fees except as provided in Section 1.1(c) of this Agreement.

2.2 Cooperation. The Parties agree to cooperate in good faith and execute all documents reasonably necessary to effectuate the dismissal of the Counterclaim and to close the docket in its entirety.

ARTICLE III — CREDIT REPORTING RELIEF

3.1 Deletion and Correction Requests. Within fourteen (14) calendar days of the Effective Date, Counterclaim Defendant shall submit deletion and/or correction requests, as appropriate, to each of the following consumer reporting agencies to which it furnished any adverse tradeline, collection entry, or derogatory information in connection with the Subject Debt or account numbers ending in 8007 and 9000:

- (a) Equifax Information Services, LLC;
- (b) Experian Information Solutions, Inc.;
- (c) TransUnion, LLC;
- (d) Any other consumer reporting agency, specialty consumer reporting agency, or data furnisher to which Counterclaim Defendant furnished information regarding the Subject Debt.

3.2 Confirmation of Submission. Within the same fourteen (14) day period, Counterclaim Defendant shall provide Counterclaimant's counsel with written confirmation — including copies of all submission correspondence or electronic submission records — evidencing compliance with Section 3.1.

3.3 Internal Records. Counterclaim Defendant shall update its internal account records to reflect that the Subject Debt is fully satisfied, closed, and not subject to further collection activity by Counterclaim Defendant or any successor, assignee, or affiliated entity.

3.4 Limitation of Liability. Counterclaim Defendant's obligations under this Article III are limited to the submission of accurate deletion and/or correction requests and confirmation thereof. Counterclaim Defendant does not warrant or guarantee the response time or actions of any consumer reporting agency following such submission, which are governed by the Fair Credit Reporting Act, 15 U.S.C. § 1681 et seq.

ARTICLE IV — NO RE-SALE OR RE-ASSIGNMENT OF DEBT

4.1 Prohibition on Transfer. Counterclaim Defendant represents, warrants, and covenants that it will not, directly or indirectly, re-sell, re-assign, transfer, convey, or otherwise dispose of any purported claim, right, or interest in the Subject Debt to any third party, including but not limited to any other debt collector, debt buyer, collection agency, or affiliate.

4.2 Account Closure. Counterclaim Defendant shall permanently mark the Subject Debt account as: closed, paid, satisfied, and not subject to further collection in all of Counterclaim Defendant's internal systems and in any account data transmitted to third parties.

4.3 Indemnification. In the event any third party pursues collection of the Subject Debt as a result of any transfer, assignment, or reporting by Counterclaim Defendant in violation of this Article IV, Counterclaim Defendant shall indemnify, defend, and hold harmless Counterclaimant from any costs, fees, damages, or liabilities arising therefrom.

ARTICLE V — MUTUAL RELEASE OF CLAIMS

5.1 Release by Counterclaimant. In consideration of the Settlement Payment and the other obligations undertaken by Counterclaim Defendant herein, Counterclaimant, on behalf of himself/herself, his/her heirs, executors, administrators, successors, and assigns, hereby fully, finally, and irrevocably releases, acquits, and discharges Counterclaim Defendant, and its respective past and present parents, subsidiaries, affiliates, predecessors, successors, assigns, officers, directors, members, managers, shareholders, employees, agents, servants, insurers, and attorneys (collectively, "Counterclaim Defendant Releasees"), from any and all claims, demands, actions, causes of action, suits, debts, liens, contracts, agreements, liabilities, losses, costs, expenses, and damages of any nature whatsoever, whether known or unknown, whether in law or equity, whether asserted or unasserted, whether direct or derivative, arising out of or in any way relating to:

- (a) The Subject Debt and account numbers ending in 8007 and 9000;
- (b) The Collections Action, Docket No. FST-CV24-6067791-S;
- (c) The Counterclaim and all claims asserted or that could have been asserted therein, including without limitation all FDCPA and CUTPA claims;
- (d) Any communication, correspondence, or reporting by Counterclaim Defendant relating to the Subject Debt prior to the Effective Date of this Agreement.

5.2 Release by Counterclaim Defendant. In consideration of the mutual covenants herein, Counterclaim Defendant, on behalf of itself and its successors and assigns, hereby fully, finally, and irrevocably releases, acquits, and discharges Counterclaimant, and his/her heirs, executors, administrators, successors, and assigns (collectively, "Counterclaimant Releasees"), from any and all claims, demands, actions, causes of action, suits, debts, and liabilities of any nature whatsoever, whether known or unknown, arising out of or relating to:

- (a) The Subject Debt;
- (b) The Collections Action;

(c) Any defense, pleading, or statement made by Counterclaimant in connection with the Collections Action or the Counterclaim.

5.3 Scope of Release — Unknown Claims. The Parties acknowledge that they may hereafter discover facts different from or in addition to those now known or believed to be true with respect to the claims released herein, and agree that this Agreement shall be and remain effective in all respects notwithstanding the discovery of such different or additional facts.

5.4 Exclusions from Release. Notwithstanding Sections 5.1 and 5.2, this release does not extend to:

- (a) Any obligations expressly created by or arising under this Agreement;
- (b) Any claim arising from Counterclaim Defendant's breach of this Agreement;
- (c) Any claim by Counterclaimant arising from collection activity on the Subject Debt occurring after the Effective Date of this Agreement.

ARTICLE VI — CONFIDENTIALITY

6.1 Confidential Terms. The Parties agree to keep the specific monetary terms of this Agreement, including the amount of the Settlement Payment, strictly confidential and shall not disclose such terms to any third party, except:

- (a) To their respective legal counsel, accountants, or tax advisors, provided such persons are bound by equivalent confidentiality obligations;
- (b) As required by applicable law, regulation, or valid court order;
- (c) As necessary for tax reporting or compliance purposes;
- (d) In any proceeding to enforce this Agreement.

6.2 Permitted Disclosure — Existence of Resolution. Notwithstanding Section 6.1, Counterclaimant shall not be prohibited from disclosing that the matter has been resolved without specifying the financial terms, and shall not be required to affirmatively misrepresent the outcome of the litigation.

6.3 Credit Dispute Correspondence. Notwithstanding Section 6.1, Counterclaimant shall be expressly permitted to disclose the existence and terms of this Agreement, including the credit reporting obligations under Article III, to any consumer reporting agency in connection with any credit dispute correspondence or FCRA dispute process.

ARTICLE VII — NON-DISPARAGEMENT

7.1 Mutual Non-Disparagement. The Parties agree to refrain from making any false, misleading, or defamatory statements regarding the other Party in connection with the subject matter of this litigation. For the avoidance of doubt, nothing in this Section shall prohibit either Party from making truthful, factual statements about the outcome of the litigation or their rights under this Agreement.

7.2 Counterclaimant Carve-Out. Notwithstanding Section 7.1, Counterclaimant retains the right to make truthful statements regarding the Collections Action and its outcome in connection with:

- (a) Any regulatory complaint filed with the Consumer Financial Protection Bureau ("CFPB"), the Connecticut Department of Banking, or any other governmental or regulatory body;
- (b) Any consultation with legal counsel;
- (c) Any proceeding to enforce this Agreement.

ARTICLE VIII — NO ADMISSION OF LIABILITY

8.1 This Agreement is entered into solely for the purpose of resolving a disputed claim and avoiding the expense and uncertainty of further litigation. Nothing in this Agreement, nor any action taken pursuant hereto, shall constitute, be construed as, or be offered or received as evidence of an admission of liability, fault, wrongdoing, or the validity of any claim or defense by any Party. Counterclaim Defendant expressly denies all allegations of the Counterclaim.

ARTICLE IX — GENERAL PROVISIONS

9.1 Entire Agreement. This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior and contemporaneous negotiations, representations, warranties, and agreements, whether oral or written. No modification of this Agreement shall be effective unless made in writing and signed by both Parties.

9.2 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of Connecticut, without regard to its conflict of laws principles.

9.3 Jurisdiction and Venue. The Parties consent to the exclusive jurisdiction of the Superior Court of the State of Connecticut, Judicial District of [District], for the purpose of enforcing this Agreement. The Court shall retain jurisdiction over this matter for enforcement purposes for a period of one (1) year from the Effective Date, or until all obligations hereunder have been fully performed, whichever is later.

9.4 Counterparts. This Agreement may be executed in one or more counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same instrument. Electronic signatures shall be deemed valid and binding to the same extent as original signatures.

9.5 Headings. Section headings are included for convenience of reference only and shall not affect the interpretation of this Agreement.

9.6 Severability. If any provision of this Agreement is held to be invalid, illegal, or unenforceable, the remaining provisions shall continue in full force and effect.

9.7 Waiver. The failure of any Party to enforce any provision of this Agreement shall not be construed as a waiver of that Party's right to enforce such provision or any other provision in the future.

9.8 Authority to Execute. Each Party represents and warrants that he, she, or it has full legal authority to enter into this Agreement and to grant the releases set forth herein, and that no other person or entity's consent is required to make this Agreement binding and effective.

9.9 Voluntary Execution. Each Party represents that he, she, or it has read this Agreement in its entirety, fully understands its terms, has had an opportunity to consult with legal counsel of his, her, or its own choosing prior to execution, and enters into this Agreement knowingly, voluntarily, and without duress or coercion.

9.10 Construction. This Agreement was negotiated at arm's length by parties of equal sophistication represented by counsel. It shall not be construed more strictly against either Party as drafter.

SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this Settlement Agreement and Release as of the date last signed below.

COUNTERCLAIM DEFENDANT:

Zwicker & Associates, P.C.

By:  _____

Name: ROBERT ROSS, ESQ.

Title: GENERAL COUNSEL

Date: MAY 29, 2026

COUNTERCLAIMANT:

SARAH H GASTON MCCARTY

Date: ____05/29/2026____

ACKNOWLEDGED AND APPROVED AS TO FORM:



Jeffrey A. Brill, Esq. Juris #719438

Skadden, Arps, Meager, Slate & Flom, LLP

Date: ____05/29/2026____

EXHIBIT A

STIPULATION OF DISMISSAL WITH PREJUDICE

Docket No. FST-CV598295098-S
Superior Court, Judicial District of [District]

The Parties, Zwicker & Associates, P.C. ("Counterclaim Defendant") and Sarah H. Gaston McCarty ("Counterclaimant"), by and through their respective counsel of record, hereby stipulate and agree that the Counterclaim filed by Counterclaimant in the above-captioned matter is hereby dismissed with prejudice, pursuant to the terms of the parties' Settlement Agreement and Release dated May 29, 2026, each party to bear its own costs and fees except as expressly provided therein.

So stipulated:

Jeffrey A. Brill, Esq. Juris #719438
Skadden, Arps, Meager, Slate & Flom, LLP
May 29, 2026

Robert Ross, Esq.
Juris #39402
Zwicker & Associates, P.C.
May 29, 2026

So ordered:

Hon. JOHN F. KAVENEWSKY, JR
Superior Court Judge
Date: _____05/29/2026_____

Respectfully submitted,

COUNTERCLAIMANT, SARAH H GASTON

By:  _____

Jeffrey A. Brill, Esq. Juris #719438
Skadden, Arps, Meager, Slate & Flom, LLP
1 Manhattan West, 395 Ninth Avenue
New York, NY 10001
(212) 735-3000

DOCKET NO. FSTCV24 6067791-S

SUPERIOR COURT

GASTON, SARAH, AKA SARAH H
GASTON
Counterclaimant,
V.
ZWICKER & ASSOCIATES, P.C.,
Counterclaim Defendant.

JUDICIAL DISTRICT OF STAMFORD
AT STAMFORD

05/30/2026

JUDGMENT BY STIPULATION

The Court, having reviewed the parties' stipulation, hereby enters judgment as follows:

1. **Judgment for the Defendant** on Plaintiff's Complaint. Plaintiff's claims are dismissed **with prejudice**.
2. **Judgment for the Counterclaimant** GASTON, SARAH H on the Counterclaim in the amount of **\$636,954.58**, inclusive of damages, attorney's fees, and costs pursuant to 15 U.S.C. § 1692k and/or CGS § 42-110g.
3. Plaintiff/Counterclaim Defendant shall satisfy said judgment within 60 days.

Judicial notice (JDNO) was sent regarding this order.

98503920

Judge: JOHN F. KAVENEWSKY, JR
Processed: Patricia Greer

This document may be signed or verified electronically and has the same validity and status as a document with a physical (pen-to-paper) signature. For more information, see Section I.E. of the State of Connecticut Superior Court E-Services Procedures and Technical Standards (<http://jud.ct.gov/external/super/E-Services/e-standards.pdf>), section 51-193c of the Connecticut General Statutes and Connecticut Practice Book Section 4-4.



Skadden

Skadden, Arps, Slate, Meager & Flom, LLP

One Manhattan West
395 Ninth Avenue
New York, NY 10001

Jeffrey Brill, Esq.

Senior Partner
Co-Head of Global Financial Institutions Group

July 20, 2026

Mrs. Sarah Gaston McCarty, Mr. Matthew McCarty,
160 Bedford Road
Greenwich, CT 06831

RE: Zwicker Settlement Proceeds Payment; Disbursement Acknowledgement; Disbursement Statement

Dear Mrs. Sarah Gaston McCarty (, Matthew McCarty),

Enclosed please find a check in the amount of \$636,954.58 USD, representing your net proceeds from the settlement of the above-referenced matter, which settled on March 11, 2026 for a gross amount of \$636,954.58 USD.

As detailed in the enclosed Settlement Disbursement Statement, this amount reflects the gross settlement less attorney's fees, case costs, and any direct costs or expenses paid on your behalf. Please review the statement carefully.

Please sign and return the enclosed Acknowledgment of Receipt at your earliest convenience.

Please note that a portion of this settlement may be subject to tax reporting requirements. We recommend you consult a tax professional regarding the tax treatment of this settlement.

It has been a pleasure representing you in this matter. Please don't hesitate to contact our office with any questions.



Jeffrey A. Brill, Esq.
Senior Partner
Skadden, Arps, Slate, Meager & Flom, LLP

Enclosures: Settlement Disbursement Statement
 Settlement Check
 Acknowledgment of Receipt